

LONG SERVICE LEAVE – THE INSTRUMENTS

Provided with my email of 7 September 2026 to the Switchboard Manager and Payroll. These are the instruments I have read in looking for the provision under which periods of approved leave without pay are excluded from continuous service. They are reproduced from the sources named below and nothing has been retyped. Each page carries a footer identifying the instrument and its page number in the source document.

Tab	Instrument	The provisions it carries	Pages omitted
1	Industrial Relations Act 2016 (Qld), reprint current as at 1 January 2026	Section 90(2) (page 115): parental leave "not to be taken into account in working out the employee's period of service". Section 94 (page 117): "the provisions of part 4 apply for working out an employee's rights and entitlements to long service leave under this division". Section 134(3) (pages 146 to 147): continuity of service "is not broken by an absence, including through illness or injury - (a) on paid leave approved by the employer; or (b) on unpaid leave approved by the employer".	The remainder of the 816-page reprint. Section 134(3) runs across two pages and both are included.
2	Hospital and Health Service General Employees (Queensland Health) Award - State 2015	Clause 22(a) (page 40): long service leave "is provided for in Division 9 of the QES". Clause 22(c) (same page): "Employees who have completed 7 years' continuous service are entitled to take long service leave on full pay or half pay."	The remainder of the Award. Page 1 is included to identify the instrument.
3	Queensland Public Health Sector Certified Agreement No. 12	Clause 9.10.1 (page 37): "Long service leave entitlements and conditions are outlined in HR Policy C38 Long Service Leave."	The remainder of the Agreement. Page 1 is included to identify the instrument.
4	HR Policy C38, Long Service Leave (QH-POL-163), December 2021	Section 1 (page 2): employees "may apply for pro rata long service leave on full pay, or half pay, after completing seven years continuous service". Attachment One: requests for leave "are not to be unreasonably refused" and the employee "is to be given timely advice as to whether or not leave is approved".	Nothing. The policy is reproduced in full.
5	Directive 10/24, Long Service Leave, effective 30 September 2024	Clause 8.1 (page 3): "employees are entitled to take pro rata long service leave after 7 years continuous service". Clause 7.4 (page 3): "The employer must respond to a request to take long service leave in a timely manner indicating whether the leave applied for has been approved or not." Clause 25 (page 7): the definition of continuous service.	Nothing. The Directive is reproduced in full.

- (2) Parental leave and flexible parental leave are not to be taken into account in working out the employee's period of service, other than—
 - (a) to decide the employee's entitlement to a later period of parental leave or a period of flexible parental leave; or
 - (b) as expressly provided in—
 - (i) this Act; or
 - (ii) an applicable industrial instrument; or
 - (iii) a contract of employment.
- (3) In this section—

flexible parental leave means leave an employee is entitled to under section 87B.

91 Dismissal because of pregnancy or parental leave

- (1) An employer must not dismiss an employee because—
 - (a) the employee or the employee's spouse is pregnant or has applied to adopt a child; or
 - (b) the employee or the employee's spouse has given birth to a child or adopted a child; or
 - (c) the employee is an intended parent under a surrogacy arrangement or the employee's surrogate child has started residing with the employee under a surrogacy arrangement; or
 - (d) the employee is a cultural parent who has applied for a cultural recognition order or the child who is the subject of a cultural recognition order has started residing with the employee under the order; or
 - (e) the employee has applied for, or is absent on, parental leave.
- (2) This section does not affect any other rights of—
 - (a) an employer to dismiss an employee; or
 - (b) a dismissed employee.

- (b) elsewhere—the employee’s continuous service with the same employer, whether wholly in the State or partly in and partly outside the State.

owner, of a meat works, includes a person who carries on the business of the works.

period between seasons includes the period between—

- (a) the end of 1 season and the start of the next season; and
- (b) for a particular employee—the day the employee stops employment in 1 season and the day the employee starts employment in the next season.

season means a period, whether falling completely in 1 calendar year or partly in 1 calendar year and partly in the next calendar year, when—

- (a) for the sugar industry—
 - (i) sugar cane is delivered to, and crushed at, a sugar mill; or
 - (ii) sugar cane is harvested, or farm work is performed, in the sugar industry; or
- (b) for a meat works—stock are delivered to, and slaughtered at, the works.

Subdivision 2 Relationship of this division with continuity of service provisions

94 Application of pt 4 for particular purposes

To remove any doubt, it is declared that the provisions of part 4 apply for working out an employee’s rights and entitlements to long service leave under this division, an applicable industrial instrument or a federal industrial instrument.

- (3) A period of service with the former employer, including service before the commencement, is taken to be a period of service with the new employer.
- (4) In relation to the transfer, the transferred employee is not an employee to whom part 3, division 13, subdivision 2 applies, unless an applicable industrial instrument mentioned in section 125(1)(a) provides otherwise.
- (5) In this section—
dismissed includes stood down.

133 Continuity of service—apprentices or trainees

- (1) This section applies if—
 - (a) an employee, while employed with the employer, starts an apprenticeship or traineeship; or
 - (b) the employer—
 - (i) continues to employ an apprentice or trainee (the *employee*) on the completion of the apprenticeship or traineeship; or
 - (ii) re-employs the employee within 3 months after completion of the employee's apprenticeship or traineeship.
- (2) The period of the apprenticeship or traineeship does not break the employee's continuity of service.

134 Continuity of service—generally

- (1) Service with a partnership and an employer who was, or becomes, a member of the partnership is taken to be continuous service with the same employer.
- (2) An employee's continuity of service with an employer is not broken if the employee's service is temporarily lent or let on hire by the employer to another employer.
- (3) An employee's continuity of service with an employer is not broken by an absence, including through illness or injury—

-
- (a) on paid leave approved by the employer; or
 - (b) on unpaid leave approved by the employer.
- (4) An employee's continuity of service with an employer is not broken if—
- (a) the employee's employment is terminated by the employer or employee because of illness or injury; and
 - (b) the employer re-employs the employee; and
 - (c) the employee has not been employed in a calling, whether on the employee's own account or as an employee, between the termination and the re-employment.
- (5) An employee's continuity of service with an employer is not broken if—
- (a) the employee's employment is terminated by the employer or employee; and
 - (b) the employer re-employs the employee within 3 months after the termination.
- (6) An employee's continuity of service with an employer is not broken if—
- (a) the employee's employment is interrupted or terminated by the employer with intent to avoid an obligation under this part, an applicable industrial instrument or contract of employment; or
 - (b) the employee's employment is interrupted or terminated by the employer as a direct or indirect result of an industrial dispute, and the employer re-employs the employee.
- (7) An employee's continuity of service is not broken if—
- (a) the employee's employment is interrupted or terminated by the employer because of slackness of trade or business; and
 - (b) the employer re-employs the employee.

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

Industrial Relations Act 2016

Hospital and Health Service General Employees (Queensland Health) Award – State 2015

Matter No. B/2023/46, B/2023/47 and B/2023/48

REPRINT OF AWARD UNDER SECTION 980

Certification of Reprint

Following the general ruling made by the Commission in the 2023 State Wage Case, the *Hospital and Health Service General Employees (Queensland Health) Award – State 2015* is hereby reprinted, under s 980 of the *Industrial Relations Act 2016*.

I hereby certify that the Award contained herein is a true and correct copy of the *Hospital and Health Service General Employees (Queensland Health) Award – State 2015* as at 1 September 2023.

Name of modern award: *Hospital and Health Service General Employees (Queensland Health) Award – State 2015*

Operative date of the modern award reprint: 1 September 2023

Operative date of modern award: As per clause 2 of the modern award

By the Registrar

M. SHELLEY

4 April 2024

- (ii) The requirements concerning the manner in which the employee may make an application to work part-time under clause 21(i)(i) are the same as those contained in the QES with respect to applications to return to work on a part-time basis for an employee on parental leave (i.e. s 75).
- (iii) The period in relation to which an application under clause 21(i) may be made cannot extend beyond the day the child is required to be enrolled for compulsory schooling under the *Education (General Provisions) Act 2006*.
- (iv) The requirements concerning the manner by which the employer is to assess any application by an employee to work part-time are the same as those contained in the QES with respect to assessing applications to return to work on a part-time basis for an employee on parental leave (i.e. s 76).

Note: Where a directive about paid parental leave covers an employee, the provisions of the directive apply to the employee to the extent it provides a more generous entitlement.

22. Long service leave

- (a) Long service leave, including for casual employees, is provided for in Division 9 of the QES. Clause 22(b) supplements the QES.
- (b) In lieu of the provisions of sections 95(2)(a) and (b) of the Act, all employees who complete 10 years' continuous service are entitled to long service leave at the rate of 1.3 weeks on full pay for each year of continuous service and a proportionate amount for an incomplete year of service.
- (c) Employees who have completed 7 years' continuous service are entitled to take long service leave on full pay or half pay.
- (d) Employees are entitled to a cash equivalent of long service leave in the following circumstances:

Specific circumstances	Minimum period of continuous service
Retrenchment	1
Ill health retirement	5
Retirement if 55 years or older	5
Death	5
Termination except where termination is due to dismissal or career advancement	7
All other circumstances	10

Note: Where a directive about long service leave covers an employee, the provisions of the directive apply to the employee to the extent it provides a more generous entitlement.

23. Public holidays

Public holidays are provided for in Division 10 of the QES. Clauses 23(a) to 23(m) supplement the QES provisions.

- (a) All work done on a public holiday by an employee who is not in receipt of the additional week's leave in accordance the clause 19.2(a) shall be paid for at the rate of double time and one-half with a minimum of 4 hours.
- (b) Except for the public holidays prescribed at clauses 23(c), (d), (e) and (f), all work done on a public holiday by an employee who is in receipt of the additional week's leave in accordance with clause 19.2(a) shall be paid at the rate of time and one-half with a minimum of 4 hours.

QUEENSLAND INDUSTRIAL RELATIONS COMMISSION

Industrial Relations Act 2016 – s 193 – certification of an agreement

State of Queensland (Queensland Health)

Health and Wellbeing Queensland

Office of the Health Ombudsman

Queensland Mental Health Commission

Forensic Science Queensland

Queensland Pharmacy Business Ownership Council

AND

Queensland Nurses and Midwives' Union of Employees

The Australian Workers' Union of Employees, Queensland

Together Queensland, Industrial Union of Employees

Transport Workers' Union of Australia, Union of Employees (Queensland Branch)

United Workers' Union, Industrial Union of Employees, Queensland

(Matter No. CB/2025/157)

**QUEENSLAND PUBLIC HEALTH SECTOR CERTIFIED AGREEMENT (No. 12)
2025**

Certificate of Approval

On 23 December 2025, the Commission certified the attached written agreement in accordance with section 193 of the *Industrial Relations Act 2016*:

Name of Agreement: **QUEENSLAND PUBLIC HEALTH SECTOR CERTIFIED AGREEMENT (No. 12) 2025**

Parties to the Agreement:

- State of Queensland (Queensland Health)
- Health and Wellbeing Queensland
- Office of the Health Ombudsman
- Queensland Mental Health Commission
- Forensic Science Queensland
- Queensland Pharmacy Business Ownership Council

9.10 Long Service Leave

9.10.1 Long service leave entitlements and conditions are outlined in *HR Policy C38 Long Service Leave*.

9.11 Caring Responsibility

9.11.1 Employees will be able to utilise accrued sick leave for the purposes of family caring responsibilities (carer's leave).

9.12 Special Leave

9.12.1 The parties agree the *Minister for Employment and Industrial Relations Directive 12/24: Special Leave* applies to all employees covered by this Agreement.

9.13 Cultural Leave - Unpaid

9.13.1 Due to cultural obligations, an employee of Aboriginal and/or Torres Strait Islander origin may take up to five days unpaid cultural leave in each year (or a greater number of days as provided under *HR Policy C7 Special Leave*). The entitlement will be administered in accordance with section 51 of the IR Act and *HR Policy C7*.

9.14 Bereavement Leave for Aboriginal and/or Torres Strait Islander Employees

9.14.1 Bereavement leave will also be approved in circumstances where the deceased is a person that occupied the same prominence in the employee's life as a family member. The employer will recognise employees' cultural or other significant personal circumstances such as recognising kinship for Aboriginal and/or Torres Strait Islander employees.

9.15 Display of Rosters

9.15.1 All employees (excluding employees where Schedule 3 applies) shall be provided with a roster prescribing their pattern of work. The roster shall be published at least 14 days in advance of each roster cycle. The roster will be made available electronically or displayed in a convenient place accessible by all employees.

9.15.2 When displayed, the entire roster must be visible to all employees in the work unit.

9.16 Roster Changes

9.16.1 The parties agree employees and their union/s may collectively request a roster change.

9.16.2 Usually such a request is made to address work life balance or fatigue issues but requests need not be limited to such issues.

9.16.3 The employer is committed to working with its employees and their union/s to address any rostering practices or concerns.

9.16.4 The employer will genuinely engage with employees and their union representatives through consultation to address concerns and/or the design of any proposed new roster. The employer will not unreasonably withhold agreement from the relevant union in relation to such proposed rosters.

9.16.5 Any roster implemented through this process must be mutually agreed between union/s and the employer.

9.16.6 Notwithstanding the provisions 9.16.1 to 9.16.5, clause 15.2(a) of the *Hospital and Health Service General Employees (Queensland Health) Award – State 2015* shall apply to the parties covered by this Award.

9.17 Afternoon Shift Penalties for All Shift Workers

9.17.1 All full-time and part-time shift workers whose shifts commence at or after 11am and finish after 6pm, shall be paid shift penalties for all hours from 12pm, as if those hours are an afternoon shift.

Long service leave

Policy Number: C38 (QH-POL-163)

Publication date: December 2021

Purpose: To outline long service leave entitlements for Queensland Health employees.

Application: This policy applies to employees working for Queensland Health

This policy does not apply to Visiting Medical Officers. Refer to Visiting Medical Officers – Engagement, leave and entitlements HR Policy B20.

This policy does not apply to Queensland Ambulance Service employees. Instead, Queensland Ambulance Service employees are to refer to their local policy/procedure.

Delegation: The 'delegate' is as listed in the relevant Department of Health Human Resource (HR) Delegations Manual or Hospital and Health Services Human Resource (HR) Delegations Manual, as amended from time to time.

Legislative or other authority:

- *Industrial Relations Act 2016*
- *Succession Act 1981*
- Health Practitioners and Dental Officers (Queensland Health) Award – State 2015
- Hospital and Health Service General Employees (Queensland Health) Award – State 2015
- Medical Officers' (Queensland Health) Award - State 2015
- Nurses and Midwives (Queensland Health) Award – State 2015
- Queensland Public Service Officers and Other Employees Award – State 2015
- Aboriginal and Torres Strait Islander Health Workforce (Queensland Health) Certified Agreement (No.1) 2019
- Health Practitioners and Dental Officers (Queensland Health) Certified Agreement (No. 3) 2019
- Nurses and Midwives (Queensland Health and Department of Education and Training) Certified Agreement (EB10) 2018
- Queensland Health Building, Engineering and Maintenance Services Certified Agreement (No. 7) 2019
- Queensland Public Health Sector Certified Agreement (No.10) 2019 (EB10)
- Minister (IR) Directive 11/18 – Long Service Leave
- Minister (IR) Directive 12/18 – Recognition of Previous Service

Related policy or documents:

- Visiting Medical Officers – Engagement, leave and entitlements HR Policy B20 (QH-POL-256)
- Purchased Leave HR Policy C21 (QH-POL-203)
- Annual/Recreation Leave HR Policy C51 (QH-POL-100)
- Recognition of previous service for long service Leave and sick leave purposes HR Policy C55 (QH-POL-211)
- Sick Leave HR Policy C64 (QH-POL-230)
- Employee complaints HR Policy E12 (QH-POL-140)
- Separation of Employment HR Policy H1 (QH-POL-227)



- Queensland Industrial Relations Commission – Payment instead of taking long service leave application guide

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	Attachment One	Procedure

1 Policy Application

Employee entitlements to long service leave are outlined in the relevant industrial award and/or enterprise agreement and the *Industrial Relations Act 2016*.

Queensland Health employees may apply for pro rata long service leave on full pay, or half pay, after completing seven years continuous service, and are entitled to a cash equivalent of long service leave on termination after 10 years continuous service, or a lesser period as outlined in section 6.1.

The procedural provisions for long service leave are listed in Attachment One.

2 Minimum access periods

Long service leave may be accessed as follows:

- For leave on full pay - the minimum leave taken at any one time is one day, or one rostered shift.
- For leave on half pay - the minimum leave taken at any one time is one week.

3 Fellowship/scholarship holders

Fellowship/scholarship holders accrue long service leave at public service rates and conditions for the duration of their bonded period with Queensland Health. Portability of these entitlements is available dependent on circumstances.

Upon completion of the bonded period, continuing employment entitlements revert to award provisions.

4 Registrars – vocational training programs

Registrars may be involved in a vocational training scheme/pathway/network that require rotation to regional centres and/or to facilities outside of Queensland Health.

Registrars returning to a Queensland Health facility after a rotation outside Queensland Health are entitled to recognition of their previous service for long service leave accumulation purposes in accordance with Minister (IR) Directive 12/18 Recognition of Previous Service. Recognition of previous service only applies to service from an employer that is recognised under Directive 12/18. Refer Recognition of previous service for long service and sick leave purposes HR Policy C55.

5 Payment instead of taking long service leave

Section 110 of the Industrial Relations Act states that an employee may be paid all or part of their long service leave balance instead of taking the leave. This payment may be made under the following circumstances:

- the applicable award, certified agreement or industrial agreement provides for the employee to be paid for all or part of the entitlement, and the employee and employer agreeing (by completing a signed agreement) that the payment be paid and the payment is made in accordance with the industrial instrument
or
- if the applicable award, certified agreement or industrial agreement does not contain a provision for an employee to apply to cash out their long service leave, the employee may submit an application to the Queensland Industrial Relations Commission (QIRC) to cash out part, or all of their long service leave balance, if the QIRC is satisfied that the payment is being made on compassionate grounds, or on the grounds of financial hardship.

Employees who complete 10 years' continuous service are entitled to apply for payment of all or part of their long service leave balance instead of taking the leave.

Nurses and Midwives (Queensland Health and Department of Education) Certified Agreement (EB10) 2018

For nursing and midwifery employees, clause 37.4 of the *Nurses and Midwives (Queensland Health and Department of Education) Certified Agreement (EB10) 2018* provides for an employee

to cash out their accrued long service leave after becoming eligible for long service leave on compassionate grounds or on the ground of financial hardship.

6 Voluntary reversion to a lower classification

When an employee voluntarily reverts to a lower classification, the employee is entitled to long service leave accrued as at the date of the reversion at the employee's substantive classification and pay point immediately preceding the reversion. At the time of taking the leave the employee is entitled to be paid at the rate of that previous higher substantive classification and pay point. An employee is not compelled to take accrued long service leave at the date of voluntary reversion to a lower classification.

Long service leave accrued after reversion to a lower classification is payable at the employee's classification and pay point at the time the leave is taken.

If an employee was subsequently promoted to a higher classification level, any long service leave would be paid at the employee's classification and pay point at the time the leave is taken.

When an employee subsequently attains a substantive classification and pay point higher than the substantive classification and pay point immediately preceding reversion to a lower classification, all long service leave accrued is payable at the higher substantive classification and pay point.

7 Termination payment

A person who ceases to be an employee, and who at the date of ceasing to be an employee has an entitlement to long service leave, is to receive a payment in lieu of long service leave not taken.

A cash equivalent of long service leave also attracts the benefit of public holidays that would occur during the long service leave if it were granted immediately upon cessation of duty.

Where cash equivalent payments are being made for recreation leave and long service leave, the long service leave and recreation leave are presumed to have been taken from the day the termination takes effect and the employee is entitled to payment for any public holidays which fall within the period the employee is presumed to have taken the leave. For purposes of processing, it is presumed that the long service leave and recreation leave are taken concurrently.

Public holidays falling within the period the employee is presumed to have taken the leave are to be paid for only once.

The calculation of the payment amount is to be based on:

- the employee's accrued long service leave not taken, as at the date of cessation,
- payment is made:
 - at the employee's ordinary rate,
 - or
 - in accordance with section 110 of the Industrial Relations Act, which does not specify the rate at which a payment in lieu of long service leave at termination is to occur. The rate to use is set out in subdivision 5 of the Industrial Relations Act, as outlined below.

“An employer must pay an employee for long service leave at the following rate—if the employee is, immediately before taking the leave, being paid at a higher rate than the ordinary rate—the higher rate”.

or

- in cases when an employee has voluntarily reverted to a lower classification as part of their continuous service, the cash equivalent is based on the actual rates paid at the time of termination for both the higher level and lower level accrued balances.

If an employee resigns and is paid cash equivalent for long service leave and/or recreation leave, and is then re-employed during a period of cash equivalent, that person does not have to pay back the cash equivalent.

When a permanent full-time or part-time employee of Queensland Health changes their employment status from permanent to fixed term temporary, without a break in service, the employee is determined not to have ceased their employment with Queensland Health. The employee is entitled to retain any accrued long service leave not taken prior to the change in status and is not to receive a payment in lieu of long service leave not taken.

7.1 Cash equivalent

Cash equivalent payment on termination normally occurs at or after 10 calendar years continuous service. Payment can be made for lesser periods of continuous service in the following circumstances:

- Upon retrenchment – one year
- Upon ill health retirement – five years
- Upon retirement if 55 years or older – five years
- Upon death – five years (refer to section 7.2)
- Termination except where termination is due to dismissals or career advancement – seven years (refer to section 7.3).

7.2 Death of an employee

When an employee dies, the amount payable to that employee on the date on which the employee died, is to be paid to the executors of the estate of the deceased employee.

When an employee dies intestate (i.e. without any will) there are procedures that need to be followed. The *Succession Act 1981* provides intestacy rules that outline how the monies are to be distributed. Schedule 2 of the Succession Act provides for the distribution to the spouse (and/or other family members).

The Public Trustee of Queensland can have a role with regards to estates until grants of letters of administration have been made. Consideration is to be given to the role of the Public Trustee and that it may not be appropriate to merely pass the entitlements cheque to a deceased employee's spouse without full consideration of the facts.

The delegate is to obtain legal advice if necessary, for example when the will does not appear to be valid or when there is a family dispute, if the employee has died intestate. Refer Separation of Employment HR Policy H1.

7.3 Exceptions to entitlements

From 1 December 2000, an entitlement was provided for the payment of the cash equivalent of pro rata long service leave after at least seven years of service, when the separation is not for the purposes of career advancement or dismissal.

Career Advancement

Career advancement (including self employment) is when there is advancement in rank or position, usually resulting in an increase in pay in line with an increase in responsibility and/or degree of difficulty in allocated tasks. A position of equal value to the position from which the employee resigns is not seen as career advancement.

When an employee has served for at least seven years, but less than 10 years, the employee must confirm in their separation advice that the separation is not for the purposes of career advancement.

Dismissal

Where dismissal is as a result of the employee's conduct, capacity or performance no cash equivalent of pro rata long service leave is to be paid.

8 Casual employees

Casual employee entitlements to long service leave are as follows:

Date	Entitlement
From 30 March 1994 onwards	Service counts provided there is no break between casual engagements of more than three months
From 23 June 1990 to 30 March 1994	Service counts provided at least 32 hours are worked every four weeks
Prior to 23 June 1990	No entitlement - service does not count (note exception for casual nurses)

Casual nurses and midwives employed prior to 1 June 1984 were entitled to accrue long service leave for service prior to 1 June 1984. Casual nurses or midwives employed on or after 1 June 1984 are not entitled to accrue long service leave during the period 1 June 1984 to 22 June 1990.

9 Part-time employees

A part-time employee accrues long service leave on a proportionate basis of the entitlement for a full-time employee. All long service leave entitlements are expressed as an hourly value.

In determining the length of absence of a part-time employee on long service leave, employees are to apply for the number of ordinary hours they would have otherwise been at work during the leave period. The debit against the balance of accrued leave is the actual number of hours absent from duty as described.

This principle applies in the case of employees who have accrued their leave entitlements by working a combination of full-time and part-time employment.

10 Extension of long service leave on a half pay basis

Employees may access long service leave on half pay. This is an extension of an existing condition of service and therefore, unless otherwise stated, the same conditions that apply to long service leave on full pay apply to long service leave on half pay.

Granting of long service leave, including on a half pay basis, is subject to organisational convenience however requests for leave are not to be unreasonably refused.

The standard conditions in this policy, apply to half pay long service leave arrangements in the following way.

10.1 Calculation

Long service leave on half-pay is debited on a full-time equivalent basis. For example, two weeks (10 days) of long service leave will attract a debit of one week (five days) from full pay credits. Unless otherwise stated, the same conditions that apply to long service leave on full pay apply to long service leave on half pay.

10.2 Leave accrual

The period of the leave is recognised as normal full-time or part-time service applying to the employee at the time of taking the leave, i.e. for the period of half pay long service leave the accrual of sick, recreation and long service leave entitlements is to remain at the full-time rate for employees working full-time and at the relevant proportional rate for employees working part-time.

10.3 Salary increments

Increment provisions are recognised as normal full-time or part-time service applying to the employee at the time of taking the leave. When a full-time employee takes half pay long service leave, such leave is recognised as full-time equivalent service towards the next increment. For example, a full-time or part-time employee on two months long service leave on half pay is to have two months full-time service credited towards their next increment.

10.4 Public holidays

Long service leave is exclusive of any public holiday that falls during the period of the leave.

Any public holidays which occur during half pay long service leave are paid at the employee's normal full-time or part-time rate.

Employees working on a seven day roster when their rostered days off vary from week to week, are to be considered to be off roster during long service leave and treated in the same way as Monday to Friday workers.

When extensions to long service leave incorporate public holidays, leave is to be extended or cash equivalents increased by virtue of these public holidays.

10.5 Concessional day

When the concessional day (or a day taken in lieu) falls during a period of half pay long service leave, eligible employees are to receive this payment at their normal full-time or part-time rate.

11 Employee complaints

An employee who believes that this policy has been incorrectly applied or has not been applied to their individual circumstances may lodge a grievance in accordance with the Individual employee grievances HR Policy E12.

Definitions:

Break in service	For the purposes of this policy, means any break greater than two days (i.e. their weekend) or up to four days in the case of rostered days off for shift workers between ceasing as a permanent employee of Queensland Health and being re-engaged as a fixed term temporary employee of Queensland Health.
Vocational training scheme/pathway/network	In Queensland, vocational trainees can be allocated to a training position in a vocational training scheme/pathway/network via three different avenues: 1. a centrally managed Queensland Health pathway, network or training program 2. directly by a Queensland Health facility accredited for training; or an individual specialist medical college, which allocates trainees to a Queensland or interstate facility.

History:

December 2021	• Policy updated as part of the HR Policy review • Policy amended to: – re-title policy from 'Long Service Leave - Entitlement, Conditions, Pay in Lieu, Cash Equivalent, Casuals, Home Helps, Part-time, Voluntary Reversion and Termination Payment' to 'Long service leave' – update references and naming conventions – include half pay provisions from repealed Long Service Leave HR Policy C41 – include the procedural information in Attachment One.
August 2015	• Policy version dated December 2009 re-enlivened as a result of the restoration of conditions under the <i>Industrial Relations Act 1999</i>.
July 2014	• Policy formatted as part of the HR Policy Simplification project. • Policy amended to: – re-title policy from 'Long Service Leave - Entitlement, Conditions, Pay in Lieu, Cash Equivalent, Casuals, Home Helps, Part-time, Voluntary Reversion and Termination Payment' to 'Long service leave' – update references and naming conventions – reflect entitlements outlined in industrial awards and agreements to remove any duplication – include provisions of Long Service Leave HR Policy C41 – include relevant long service leave related provisions from Annual/Recreation leave HR Policy C51

	remove provisions relating to the death of an employee which is available in the Separation of Employment HR Policy H1
December 2009	Protected IRM 11.4-1 reformatted as part of the HR policy consolidation project in accordance with EB7. Minimum period of long service leave amended in line with public service provisions.
Previous	- Long Service Leave HR Policy C41 (QH-POL-167) - Annual/Recreation Leave C51 (QH-POL-100) - IRM 11.4-1 Leave – Long Service Leave – Entitlement, Conditions, Pay In Lieu, Cash Equivalent, Casuals, Home Helps, Part-Time, Voluntary Reversion and Termination Payment

Attachment One – Procedure

The following information is provided as the minimum mandatory standard practice, procedure or process to enable satisfactory compliance with this Queensland Health HR policy.

Local guidelines/procedures may be developed to facilitate implementation of this policy. Any local guidelines/procedures must be consistent with this policy and standard practice and ensure employee entitlements continue to be met.

The following provisions are to apply in respect of long service leave:

- An application for leave is to be made through *myHR*, specifying if the leave is to be accessed on a full or half pay basis.
- Timely notice of the desire for leave is to be given by the employee.
- Employees are advised to seek advice from the Australian Taxation Office or their accountant/financial advisor regarding taxation implications for payments of long service leave on half pay or cashing out of long service leave.
- Existing employee options in relation to superannuation contribution levels (and proportionate employer contribution and benefit levels) are to apply. Employees are advised to contact their superannuation provider for advice regarding superannuation implications.
- The employee is to be given timely advice as to whether or not leave is approved.
- Granting of long service leave, including on a half pay basis, is subject to organisational convenience however requests for leave are not to be unreasonably refused.
- Leave may be taken up to the total amount of leave due as at the date of commencement of the leave, calculated by:
 - determining the total period of the employee's continuous service having regard to the provisions of this policy in respect of leave credited for service
 - determining the total long service leave entitlement appropriate to that period of continuous service
 - deducting from the total entitlement any long service leave previously taken and any entitlement forfeited as a result of disciplinary action.
- When an employee becomes ill and is granted sick leave in lieu of long service leave, approval is granted in accordance with the Sick Leave HR Policy C64.
- When an employee is recalled from long service leave, the taking of the balance of the leave originally approved is not subject to any minimum period, other than the minimum balance that can be taken is one day.

DIRECTIVE 10/24

Supersedes: 11/18

Minister for Industrial Relations Directive: Long Service Leave

1. Purpose:

To prescribe entitlements and conditions for long service leave.

2. Effective date: 30 September 2024**3. Legislative authority:**

3.1 Section 223 of the *Public Sector Act 2022* (PS Act).

3.2 Section 228 of the PS Act outlines the relationship between a directive and an Act or subordinate legislation, including how to deal with inconsistencies.

3.3 Section 229 of the PS Act outlines the relationship between a directive and industrial instrument, including how to deal with inconsistencies.

4. Application:

4.1 This directive applies to industrial instrument employees (i.e. employees to whom an award, certified agreement or arbitration determination applies) who are:

(a) public service employees; or

(b) public sector employees employed under the establishing legislation¹ of the following entities:

(i) Queensland Health; ²

(ii) Hospital and Health Services;

(iii) Queensland Building Construction Commission;

(iv) Queensland Building Construction Commission Employing Office;

(v) Residential Tenancies Authority;

(vi) Residential Tenancies Employing Office;

(vii) Trade and Investment Queensland; or

(viii) Office of the Queensland Integrity Commissioner

5. Entitlement

5.1 Employees to whom this directive applies are entitled to long service leave on full pay as provided in this directive.

¹ For example, the establishing legislation of the Queensland Building and Construction Commission is the *Queensland Building and Construction Commission Act 1991*.

² For avoidance of doubt, this includes Health Service Employees employed by Queensland Health (Department of Health) but does not include Queensland Ambulance Service employees appointed under the *Ambulance Service Act 1991*.

6. Long service leave entitlement and accrual

- 6.1 An employee who completes 10 years continuous service is entitled to long service leave on full pay of:
- (a) 6.5 working days for each year of continuous service; or
 - (b) 1.3 calendar weeks for each year of continuous service; and
 - (c) a proportionate amount for an incomplete year of service.
- 6.2 It is at the chief executive's discretion whether the leave is calculated in working time or calendar time.
- 6.3 Leave prescribed in this directive may be converted to an hourly basis for the purpose of applying, granting and recording of the leave. Schedule One provides conversion formulas.
- 6.4 Part-time employees
- (a) Leave entitlements apply to part-time employees on a pro-rata basis.
 - (b) The qualifying period for long service leave purposes for part-time employees is 10 calendar years of continuous service worked on a part-time basis, or a combination of full-time, part-time and/or casual service.
- 6.5 Casual employees
- (a) For the purpose of this directive, the service of a casual employee is regarded as continuous if the employee has service that has been recognised for long service leave purposes and it extends over a period of 10 years or longer.
 - (b) A casual employee's entitlement to long service leave is to be calculated as follows:
Number of hours x rate of pay
Where:
Number of hours =
$$\frac{\text{total hours of work}}{52} \times \frac{13}{10}$$
- 6.6 Voluntary reversion to a lower classification
- (a) Where an employee voluntarily reverts to a lower classification, the employee will be entitled to long service leave accrued as at the date of the reversion at the employee's substantive classification and paypoint immediately preceding the reversion.
 - (b) The employee is not compelled to take accrued long service leave at the date of voluntary reversion to a lower classification.
 - (c) Long service leave accrued after reversion to a lower classification is payable at the employee's classification and paypoint at the relevant time.
 - (d) Should the employee subsequently attain a substantive classification and paypoint higher than the substantive classification and paypoint immediately preceding reversion to a lower classification, all long service leave accrued will become payable at the higher classification and paypoint.

7. Taking leave

- 7.1 The taking of long service leave is subject to entity convenience.
- 7.2 Applications for long service leave are to be made in writing or in a form determined by the chief executive.
- 7.3 An employee is to give timely notice of the date from which long service leave is to take effect.

- 7.4 The employer must respond to a request to take long service leave in a timely manner indicating whether the leave applied for has been approved or not.
- 7.5 An employer and employee may agree when the employee is to take long service leave.
- 7.6 If the employer and employee cannot agree on the timing of the leave, the employer may decide when the employee is to take leave by giving the employee at least 3 months written notice of the date on which the employee must take at least 4 weeks long service leave.

8. Taking pro rata long service leave after 7 years

- 8.1 Subject to clause 7.1, employees are entitled to take pro rata long service leave after 7 years continuous service. See clause 20 for payment on termination after 7 years continuous service.

9. Recall or cancellation of leave

- 9.1 If entity circumstances require it, a chief executive may:
 - (a) recall an employee from long service leave; or
 - (b) cancel the approval of any long service leave; or
 - (c) defer the taking of long service leave.
- 9.2 An employee who is recalled or whose leave is cancelled will be allowed to take leave at the earliest opportunity that is mutually convenient for the employee and the chief executive.
- 9.3 Where an employee has incurred expenses, such as deposit payments, relating to payments for accommodation and/or travel for the employee and/or their immediate family, and those expenses are lost due to a recall, cancellation or deferral of leave by the chief executive, the expenses will be reimbursed by the entity. Such reimbursement is conditional upon the employee producing evidence of losses incurred, in the form of receipts or other evidence to the satisfaction of the chief executive.

10. Leave based on the number of hours that the employee would have worked

- 10.1 Where leave is calculated in working time and an employee is rostered to work a specific number of hours on a day and the employee is absent from duty on that day, or for part of it, the employee's leave account is to be reduced. This reduction will be the number of hours that the employee was rostered to work on that day but did not work.

11. Minimum period

- 11.1 The minimum period of long service leave that may be taken at any one time is 1 calendar week (exclusive of public holidays) except in the following situations:
 - (a) where an employee is recalled from long service leave; or
 - (b) where an employee becomes ill and is granted sick leave instead of the long service leave already approved; or
 - (c) where the employer gives an employee at least 3 months written notice for the employee to take long service leave in the event the employer and employee are unable to agree on the timing of the leave; or
 - (d) where the chief executive determines that an employee may take long service leave for a period of less than 1 week (but not less than 1 day).
- 11.2 The above minimum period exemptions apply whether on full-pay or half-pay.

12. Calculation of leave available

- 12.1 Long service leave may be taken up to the total amount of long service leave due as at the date of commencement of the leave. Long service leave will be calculated by:
- (a) determining the total period of the employee's continuous service, including leave credited for service; and
 - (b) determining the total amount of long service leave entitlement appropriate to that period of continuous service; and
 - (c) deducting from the total long service leave entitlement, any long service leave previously taken.
- 12.2 Notwithstanding clause 12.1, at the discretion of the chief executive an employee may be granted long service leave that accrues up to the end date of a period of long service leave. Nothing in this clause affects a qualifying period for long service leave.

13. Payment of long service leave

- 13.1 Payment of long service leave is based on the calculation of leave available (see clause 12.1 above) and the full pay to which the employee is entitled in their substantive position unless the conditions in the Ministerial Directive relating to Higher Duties apply.
- 13.2 Payment of long service leave in advance is at the discretion of the chief executive.

14. Public holidays occurring during long service leave

- 14.1 Long service leave is exclusive of any public holiday that falls during the period of the leave.

15. Extension of long service leave on a half pay basis

- 15.1 Long service leave may be granted on half pay for any purpose.
- 15.2 Granting of the leave on half pay is subject to the entity's convenience, however requests for leave should not be unreasonably refused.
- 15.3 The standard conditions in this directive apply to half pay long service leave arrangements in the following way:
- (a) Leave accrual

The period of the half pay long service leave will be recognised as normal full-time or part-time service applying to the employee at the time of taking the leave, i.e., pay point increments and the accrual of sick, recreation and long service leave will remain at the normal entitlement for the period of half pay long service leave for employees working full-time and at the relevant proportional rate for employees working part-time.
 - (b) Leave debit

Periods of half pay long service leave will be debited on a full-time equivalent basis. For example, half pay long service leave for a period of 8 weeks will attract a debit of 4 weeks from full pay credits.
 - (c) Locality Allowance

For employees with an entitlement to locality allowance under an industrial instrument, the allowance will be paid on a proportionate basis for the period of the leave i.e. half the normal entitlement.

(d) Minimum period of the leave

Half pay long service leave must be taken for a minimum 1 calendar week. The leave may be taken in conjunction with other forms of leave.

(e) Public Holidays

Half pay long service leave is exclusive of any public holiday that falls during the period of the leave. A public holiday that falls during a period of half pay long service leave will be paid at the employee's normal full-time or part-time rate.

(f) Sick leave in lieu

Where sick leave is granted after starting a period of long service leave on half pay, such sick leave granted in lieu shall also be at half pay.

16. Teachers and vacation periods

- 16.1 A vacation to which a teacher is entitled will not be counted as forming part of any period of long service leave taken by that teacher.

17. Sick leave instead of long service leave

- 17.1 Sick leave may be granted instead of long service leave already approved where:

- (a) an employee becomes ill before the start of the long service leave and, before starting the leave, submits a written application for sick leave, supported by a medical certificate or other evidence of the illness acceptable to the chief executive; or
- (b) an employee becomes ill after starting the long service leave and submits a written application for sick leave, supported by a medical certificate or other evidence of the illness acceptable to the chief executive, and the period of illness is more than 3 days.

18. Cash equivalent of long service leave of termination

- 18.1 Subject to clauses 20 and 21, a person who ceases to be an employee and who, at the date of cessation, has an entitlement to long service leave under this directive, is to receive a payment instead of the long service leave not taken.

- 18.2 The calculation of the amount of the payment is based on:

- (a) the employee's entitlement to long service leave as at the date of cessation;
- (b) less any long service leave previously taken; and
- (c) the full-pay rate payable to the employee at the employee's substantive position at the date of ceasing employment, unless the conditions in the Ministerial Directive relating to Higher Duties apply.

19. Public holidays in relation to a cash equivalent of long service leave

- 19.1 A cash equivalent of long service leave also attracts the benefit of public holidays that would occur during the long service leave if it were granted immediately upon cessation of duty.
- 19.2 Where cash equivalent payments are being made for recreation leave and long service leave, the long service leave and recreation leave are presumed to have been taken from the day the termination takes effect and the employee is entitled to payment for any public holidays which fall within the period the employee is presumed to have taken the leave. For purposes of processing, it is presumed that the long service leave and recreation leave are taken concurrently.

- 19.3 Public holidays falling within the period the employee is presumed to have taken the leave are to be paid for only once.

20. Entitlement to a proportionate payment on termination after 7 years continuous service

- 20.1 An employee who has completed at least 7 years continuous service but less than 10 years continuous service is entitled to a proportionate payment for long service leave on the termination of the employee's service only if:

(a) the employee terminates their service because of:

- (i) ill health or incapacity that is significant but does not qualify for ill health retirement; or
- (ii) a domestic or other pressing necessity; or

(b) the employer:

- (i) dismisses the employee for a reason other than the employee's conduct, capacity or performance; or
- (ii) unfairly dismisses the employee.

21. Entitlement to a proportionate payment on termination after various periods of continuous service

- 21.1 Proportionate payments will be made to employees whose employment has been terminated in the following circumstances and they have completed the period of continuous service prescribed below:

(a) On termination of contract

Where the chief executive terminates the employment of an officer on a contract of employment under section 155 of the PS Act and the termination is for reasons other than disciplinary action or retirement on grounds of mental or physical incapacity – 1 year of continuous service.

(b) On action because of surplus

An employee whose position is deemed to be surplus to the entities needs because the entity employs more employees than it needs for the effective, efficient, economical and appropriate performance of its functions; or the duties performed by the employee are no longer required – 1 year of continuous service.

(c) Voluntary retirement

An employee referred to in section 164 of the PS Act who:

- has elected to retire from the public service on turning 55 or older; and
- who is not an employee who is deemed to be surplus to the entities needs; or
- is permitted to retire under a directive,
 - 5 years continuous service.

(d) Ill health retirement

A person referred to in section 103 of the PS Act, who is retired on the grounds of mental or physical incapacity – 5 years continuous service.

(e) On death

An employee who dies – 5 years continuous service.

22. Payment on an employee's death

- 22.1 Where a long service leave entitlement is payable to an employee who has died, the payment will be made to the employee's legal personal representative.

23. Payment instead of long service leave to a continuing employee

- 23.1 Pursuant to the *Industrial Relations Act 2016* (IR Act), an employee may be paid for all or part of an entitlement to long service leave instead of taking the leave or part of the leave if one of the following applies:
- (a) If an award, certified agreement or industrial agreement applying to the employee provides for the payment of all or part of an entitlement to long service leave instead of taking the leave or part of the leave, payment may be made in accordance with the award or agreement, if the employer and employee agree by a signed agreement; or
 - (b) If no award, certified agreement or industrial agreement provides for the employee to be paid for all or part of an entitlement to long service leave instead of taking the leave or part of the leave, payment may be made only if the payment is ordered by the Queensland Industrial Relations Commission on application by the employee.
 - (c) The Commission may order the payment only if satisfied that the payment should be made on compassionate grounds; or on the ground of financial hardship.

24. Movement across/within entities (excluding machinery of government changes)

- 24.1 Where a permanent employee moves within or between entities their long service leave accrual will automatically transfer with them.
- 24.2 Where an employee employed on a fixed term temporary basis obtains a new role (permanent or new fixed term temporary role) or a new contract for the same role, within the same entity, their long service leave accrual will automatically remain/transfer with them.
- 24.3 Subject to clause 24.4, where an employee employed on a fixed term temporary basis obtains a role in a new entity their accrued long service leave will be paid out by the former entity in accordance with clause 18.
- 24.4 Where an employee employed on a fixed term temporary basis, the former entity and the new entity all agree, long service leave accrual of the employee will transfer to the new entity.

25. Definitions

Except where otherwise defined, terms in this directive are consistent with their meanings in the *Industrial Relations Act 2016* and/or the *Public Sector Act 2022*.

Continuous service includes service and periods of leave that have been recognised for long service leave purposes under the relevant directive.

Daily hours, means –

- the number of ordinary daily working hours of an employee as specified in an industrial instrument.
- in any other case – the number of hours specified in the relevant industrial instrument as the average number of hours per working day of an employee during a pay period or other period that is reasonable in the circumstances.

Employee's legal personal representative means the executor or administrator of an employee's estate.

Full pay means the employee's ordinary rate of pay and is inclusive of any fixed allowances that are part of the regular fortnightly pay.

Half pay means half of the rate of full pay.

Industrial instrument for the purposes of this directive, except for clause 3 (Legislative Authority) and clause 4 (Application), means an award, certified agreement, contract, former determination of the Governor-in-Council, directive or determination made under section 180 of the IR Act.

Ordinary rate means the rate that the relevant industrial instrument states is payable for ordinary time.

Teacher means an employee determined by the chief executive to be a teacher for the purpose of this directive.

Weekly hours means -

- the number of ordinary weekly working hours of an employee as specified in the relevant industrial instrument; or
- in any other case – the number of hours specified in the relevant industrial instrument as the average number of hours per working week of an employee during a pay period or other period that is reasonable in the circumstances.

SCHEDULE ONE – CONVERSION FORMULAS

1. Conversion of entitlements

This schedule sets out the formulas to be utilised when converting long service leave to hours.

2. Where leave is expressed in weeks

If an employee's leave entitlement is expressed in weeks, it may be read as if it were expressed in hours using the following formula:

$$LE = W \times WH$$

Where:

LE = Leave Entitlement (means the amount of leave in working hours to which the employee is entitled)

W = Weeks (means the entitlement accrued in calendar weeks under this directive)

WH = Weekly Hours (as defined)

3. Where leave is expressed in days

If an employee's leave entitlement is expressed in days, it may be read as if it were expressed in hours using the following formula:

$$LE = D \times DH$$

Where:

LE = Leave Entitlement (means the amount of leave in working hours to which the employee is entitled)

D = Days (means the entitlement accrued in calendar days under this directive)

DH = Daily Hours (as defined)

4. Where leave is expressed in weeks and days

If an employee's leave entitlement is expressed in weeks and days, the conversion to hours of the weeks and days components should be calculated separately and then added to give the new entitlement.

For example, to convert an entitlement where the leave balance is 5 weeks and 3 days:

(a) For an employee on 36.25 hours a week:	(b) For an employee on 38 hours a week:
LE (weeks) = 5 x 36.25 = 181.25	LE (weeks) = 5 x 38.00 = 190
LE (days) = 3 x 7.25 = 21.75	LE (days) = 3 x 7.60 = 22.8
Total entitlement (in hours) 203 hours	Total entitlement (in hours) 212.8 hours